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|   |                                                                                                            | <p>and proofs of service showing service of the original and amended application papers upon all parties who have appeared in this action and the State Bar.</p> <p>Defendant shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 3 | <p><b>Phan vs. Fountain Valley Regional Hospital and Medical Center</b></p> <p><b>30-2025-01500005</b></p> | <p><u>Motion to Furnish Security</u></p> <p>Defendant Fountain Valley Regional Hospital and Medical Center's Motion for Order Requiring Vexatious Litigant Plaintiff, Tin Quoc Phan, to Furnish Security is GRANTED in part and DENIED in part.</p> <p>Defendant Fountain Valley Regional Hospital and Medical Center's Request for Judicial Notice of Court Records is GRANTED as to Exhibits 1-8. (See Evid. Code, § 452, subd. (d).)</p> <p>However, Defendant Fountain Valley Regional Hospital and Medical Center is encouraged to strictly comply with all provisions of the Civil Procedure Code and California Rules of Court in the future, including the provision that requires "[a]ny request for judicial notice must be made in a separate document." (Cal. Rules of Court, rule 3.1113(I).) Future violations may result in the court denying or disregarding non-compliant papers.</p> <p>Plaintiff Tin Quoc Phan is ORDERED to post an undertaking or bond, or furnish security, in the amount of \$15,110 within 60 days of receiving notice of this ruling.</p> <p>Plaintiff Tin Quoc Phan is ORDERED to file and serve a notice of undertaking, bond, or furnishing of security and attach evidence of the undertaking, bond, or furnishing of security within 60 days of receiving notice of this ruling.</p> <p>If Plaintiff Tin Quoc Phan fails to abide by the court's orders, Defendant Fountain Valley Regional Hospital and Medical Center may move <i>ex parte</i> for dismissal pursuant to Civil Procedure Code section 391.4.</p> <p><u>Furnishing Security</u></p> <p>Code of Civil Procedure section 391.1 states that:</p> |

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|  |  | <p>In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.</p> <p>(Code Civ. Proc. § 391.1, subd. (a).)</p> <p>Code of Civil Procedure section 391.3 further provides that:</p> <ul style="list-style-type: none"> <li>(a) Except as provided in subdivision (b), if, after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix.</li> <li>(b) If, after hearing evidence on the motion, the court determines that the litigation has no merit and has been filed for the purposes of harassment or delay, the court shall order the litigation dismissed. This subdivision shall only apply to litigation filed in a court of this state by a vexatious litigant subject to a prefiling order pursuant to Section 391.7 who was represented by counsel at the time the litigation was filed and who became in propria persona after the withdrawal of his or her attorney.</li> <li>(c) A defendant may make a motion for relief in the alternative under either subdivision (a) or (b) and shall combine all grounds for relief in one motion.</li> </ul> <p>(Code Civ. Proc., § 391.3.)</p> |
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|  |  | <p>In addition, “[w]hen security that has been ordered furnished is not furnished as ordered, the litigation shall be dismissed as to the defendant for whose benefit it was ordered furnished.” (Code Civ. Proc., § 391.4.)</p> <p>Here, Plaintiff was declared a vexatious litigant on October 22, 2025, in the related case, <i>Phan Tin Quoc v. Fountain Valley Regional Hospital</i>, Orange County Superior Court Case Number 30-2023-01337174.</p> <p>Plaintiff was also declared a vexatious litigant on October 27, 2025, in <i>Tin Quoc Phan v. County of Orange</i>, Orange County Superior Court Case Number 30-2025-01496640.</p> <p>Further, there is no reasonable probability that Plaintiff will prevail in this action.</p> <p>Plaintiff’s claims are barred by the statutes of limitations contained in Civil Procedure Code sections 335.1 and 340.5.</p> <p>Plaintiff’s claims also are by the principles of claim preclusion.</p> <p>Therefore, the court will grant the motion to furnish security.</p> <p><u>Amount of Security</u></p> <p>Defendant Fountain Valley Regional Hospital and Medical Center (Defendant FVRH) seeks security in the amount of \$81,642.50, consisting of \$66,360 in anticipated fees and costs through trial in this action and \$15,282.50 representing the judgment and costs entered against Plaintiff in the prior action.</p> <p>Defendant FVRH estimates that fees and costs through motions for summary judgment or summary adjudication will amount to \$15,110 and that trial-related fees and costs will total an additional \$51,250. (See Decl. of Paul L. Tetreault (Tetreault Decl.), ¶ 13.)</p> <p>Security in the amount of \$15,110 is supported by the evidence. However, the additional amount of \$51,250 is speculative. For example, Defendant FVRH characterizes the possibility that Plaintiff will succeed in bringing the case to trial as an “off-chance.” (See <i>ibid.</i>)</p> |
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|   |                                                                          | <p>In addition, the security should not include the \$15,282.50 awarded in the prior action. Section 391 authorizes security for reasonable expenses incurred "in or in connection with" the litigation instituted or maintained by the vexatious litigant. (See Code Civ. Proc., § 391.1, subd. (c).)</p> <p>The judgment in the prior action is a separate, existing obligation and is not an expense incurred in defending the present action.</p> <p>Thus, the court will order that Plaintiff furnish security in the amount of \$15,110.</p> <p>Defendant FVRH shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 4 | <p><b>Biotronik, Inc. vs. Letarte</b></p> <p><b>30-2024-01436213</b></p> | <p><u>Motion to Seal</u></p> <p>Defendant Inari Medical, Inc.'s Amended Motion to Seal Portions of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint is GRANTED.</p> <p>The court ORDERS that the following shall be sealed:</p> <ol style="list-style-type: none"> <li>1. Exhibit 3 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint (ROA #229), and</li> <li>2. Exhibit 4 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint (ROA #229).</li> </ol> <p><u>Pending Motion</u></p> <p>Defendant Inari Medical, Inc. (Defendant Inari) moves to seal Exhibits 3 and 4 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint (ROA #229).</p> <p><u>Standard for Motion to Seal</u></p> <p>"Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c); see <i>In re Marriage of Tamir</i> (2021) 72 Cal.App.5th 1068, 1078 [public's right of</p> |